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# **I Was Hired by One of the “Cornell Seven” Last Year. I Know Well How This Case Has Gone Uniquely Wrong.**

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Hanna Stotland

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# I Was Hired by One of the “Cornell Seven” Last Year. I Know Well How This Case Has Gone Uniquely Wrong.

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The shocking details in a woman’s lawsuit against Cornell University, a fraternity, her sorority, and (most infamously) seven of her fellow students have ricocheted through the nation. By now you have likely heard the broad strokes of the case: “Jane Doe” says she went to Chi Phi fraternity one night, quite intoxicated, and two men had simultaneous sex with her (consent for the encounter is disputed). Later, one of them posted on Snapchat that there was “free pussy” in the house. What exactly happened after that is harder to parse, but now, Doe has brought a lawsuit against multiple entities alleging that she was gang-raped and that the crime was not taken seriously by the people that should have handled it.

It is a horrible story. It’s obvious why it has gotten so much attention. The sordid elements alleged—gang rape, ketamine use, the Snapchat—paint a disturbing picture of life on campus for women, while the perceived failure of a university to properly protect its students and the failure of the police to adequately adjudicate crimes of sexual violence feel all too familiar. I’m an educational consultant who helps young people in moments of crisis like this one. I have known about this specific story for longer than most, because I advised one of the seven accused Chi Phi members last year (though nothing in this piece is based on specific information I learned that way, and I am no longer working on this case). I’m hoping to help add context to this story from my broader experience with these types of situations: I’ve been an educational and career counselor for 363 students involved in campus sexual misconduct proceedings, including dozens of survivors as well as many accused, and I’ve been an expert witness in 21 civil suits arising from those matters. Families hire me to help their (often adult) children continue their educations following crises like school discipline, mental illness, and substance abuse. I think my vantage point allows me to understand what went uniquely wrong at Cornell, and what is the result of messy systems that have long demanded more attention than they have been given.

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Understanding what went wrong at Cornell requires us all to look at this case with nuance even in the midst of justified panic and rage. Rape is real. The allegations in the civil suit, not to mention the Snapchat, are loathsome. Many rapes go unreported, and getting convictions is no easy matter. Lots of observers hear sickening echoes of their own experiences, or their daughters’, reflected in this story. I understand the reaction: If someone feels like they are watching a house burn down with their kids inside, they want the person who lit the match to be found and punished, as quickly and dramatically as possible. They’re not in the right headspace to contemplate societal solutions to the problem of arson.

Yet, that’s what the moment demands. Even though it feels like we have witnessed something

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repulsive—something that provokes memories and fears for many women—we have not yet seen the evidence that can actually confirm or disprove the allegations that are floating around, some of which even exceed the claims in the lawsuit. It matters that no civil jury has yet found that any defendant harmed Jane Doe. Hateful chats are not proof of violent rape. We have plenty of time to condemn the defendants when and if we get confirmed facts about what each one did, but there is still a lot we don't know. I want to be clear that if the facts lead the men to be found civilly or criminally responsible, they should be punished for what they did, as they were in Title IX proceedings already. Right now, we are not there yet.

Many people are taken completely aback by some of the disturbing details of this case. As someone who lives in this space, I want to specifically underline something: This story doesn't happen without substance abuse. The case *is* an extreme outlier in terms of alleged severity; I've not encountered another case in my career involving ketamine, or with four or more alleged assailants over the course of multiple hours. (Though I must note: Despite the prominent use of the chilling phrase the "Cornell Seven," the lawsuit accuses four of the defendants of having sex with Doe; one of kissing her; and two of snorting drugs off her body.) But the case is par for the course in the sense that everyone on both sides of the allegations was abusing substances, which is a factor in nearly every case I've worked on. Doe says she took nine shots of vodka in her own sorority house before heading out for the evening. Meanwhile, according to Doe, every defendant took ketamine, and she did as well. In her statement to police, she said that one of her first two sex partners could not stay awake during sex, and she woke him several times to see if he needed care, and the other was dry-heaving immediately afterward. According to the New York Times' summary of the men's statements during the Title IX process, they agree that they were drunk and high on marijuana to the point of vomiting at the time of the encounter.

Even in a world where we eradicate sexual assault, this kind of substance use is life-and-death dangerous. In this world, it's a great way to end up in my crisis management practice, either as accuser or accused (and yes, it is a societal problem how often men and women slot into these roles). In more than 90 percent of my 363 cases, both students were drinking or high. I can count my cases where both were sober on one hand. I can't let fear of being called a victim blamer keep me from stating the obvious truth: I'm a substance abuse blamer. Two things are true at once: It's never a drunk woman's fault that someone harmed her, *and* the harm rarely happens when nobody is drunk. That doesn't mean the men are not civilly (or even criminally) responsible for their behavior; it is just a fact. What would have happened at Chi Phi if everyone were sober, or even just buzzed? Doe's whole theory of the case is that she was too intoxicated to consent; she does not claim that she said no and was ignored. In fact, in her police statement, she identified multiple occasions when she said no, and the no was respected, in spite of everyone's intoxication. So if everyone had been sober, in the less likely event that the men proposed the same sex acts, it appears she would either have said yes and meant it or said no and been obeyed.

What about the role of Greek life? Jane Doe sued her sorority on the theory that it was partly to blame for the unsafe drinking on its property. But the fraternity was the site of the alleged horror and is the subject of much of the resulting outrage. That's to be expected—I've never had a case where a student reported being assaulted in a sorority. There is a litany of reasons why fraternities are the site of these types of events: their liminal status as unsupervised sites that are also part of the college, the need of universities like Cornell to rely on them for student housing, the way they attract guests with free alcohol and drugs—I could go on. But we know by now that these are unsafe environments—for women, obviously, but also for men. Cornell banned the frat where the alleged assault took place, but many others continue to operate.

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That leads us to the adjudication of this case so far. It's hard even for lawyers to keep track of the elements, so let's start with a refresher on three layers of enforcement that can cover alleged campus rapes: criminal, civil, and Title IX. All three are at issue here.

Criminal proceedings are the layer that nonlawyers tend to be most familiar with. This is what you've seen on *Law & Order*. Criminal prosecutions have to be initiated by the government, not by a private party, and to secure a conviction, a prosecutor must either persuade a defendant to plead guilty or prove the case to a jury beyond a reasonable doubt. This is rightly a high bar, because a conviction empowers the government to imprison the defendant, confiscate their property, and generally end their freedom. That's why you're "innocent until proven guilty"—the stakes are so high that our system assumes it's better to let 10 guilty men go free than imprison one innocent man. And when it comes to rape, they're almost always men.

Police and prosecutors were involved in this case back in 2024, but that wasn't public knowledge because no one was arrested or charged. Investigations, if they don't lead to further action, are generally not publicized. That's because, as we are observing in this matter, just being associated with an alleged crime is extremely stigmatizing. We want that stigma to attach to a defendant once professionals have assessed that it is justified, not every time there is an accusation. When the case was originally investigated, no criminal charges were brought.

But there were consequences from layer two: the Title IX investigation. Title IX is the federal law that mandates, among other things, that universities investigate and punish sexual misconduct on campus. This obligation is based on the idea that making someone sit in class with their rapist is denying them educational opportunities on the basis of sex. The Title IX process is conducted confidentially, within the university's walls, by faculty and administrators, much as it would be for a student accused of cheating on a test or breaking other school rules. If it sounds odd to you that college administrators would adjudicate allegations of gang rape, you are not alone; commentators on both the left and the right have criticized the process for this reason.

The only punishments the accused students have received have been via this process—the fraternity chapter was shut down and barred from campus. Cornell expelled two students, while the five other students were given a range of sanctions, including suspensions. The assertion that seven gang rapists wrote essays to atone for their sin has become a particular target of disgust and outrage online, but it is a wild mischaracterization of the situation at hand. Let me explain: The civil pleading states that upon receiving the Title IX complaint in November of 2024, Cornell temporarily suspended the seven defendants and afforded them "the opportunity to mitigate their conduct by submitting essays." Assuming that's true, the immediate interim suspensions are normal and so is an opportunity to protest them in writing. At that stage of a Title IX process, students can't write reflection papers as a punishment, because there has been no finding of responsibility. The hearings didn't even happen until May 2025. Essays *can* be part of a consequence, especially where a student has been suspended and the essay is required as a condition of return. New reporting says that was part of the punishment for the defendants found responsible for lesser offenses. But no one found responsible for rape was given an essay as penance.

How much will any of this be reexamined, now? That depends. The news that brought the Cornell case into the public eye is the third legal layer at play here: the civil cases that Jane Doe has brought. Civil cases begin when one person or entity decides to sue another—or a bunch of others, in this case. Civil cases seek money damages and/or court orders mandating specific actions like changing a student's transcript or transferring ownership of a house, but no one can end up in jail as the result. Civil cases take place in public, and they have a lower bar for the defendant to be

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found liable (by a preponderance of the evidence, not beyond a reasonable doubt), because the consequences are less severe. Under some circumstances, a plaintiff can sue pseudonymously, not revealing their name in public, although the court staff can see it. That's why the plaintiff here is called Jane Doe. In mid-September, she brought a civil suit against all the entities mentioned above. These civil suits, and frankly, the media attention resulting from them, may influence the future of a criminal case—already, New York Gov. Kathy Hochul has appointed Attorney General Letitia James as a [special prosecutor to reinvestigate the case](#).

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Does this renewed attention mean that Cornell completely abdicated its duty the first time around? I don't think so: The complaint states that Cornell held “at least twelve” hearings to determine the responsibility of seven accused students. That's actually a fact in its favor. A lot of Title IX matters are resolved with no hearings at all. Holding 12 or more hearings is consistent with the theory that Cornell was trying to make individualized determinations about each student (as it should). It would be very easy for a university to just expel everyone Doe named and let God sort 'em out. I see such summary executions from Title IX panels all the time. Yet Doe accused different defendants of very different behavior; snorting ketamine off of a woman you don't know is gross at best, but it isn't gang rape, and it shouldn't be punished as such. It's no insult to Cornell to note that it didn't treat all the defendants the same.

Still, if you're an elite university, the threat of a lawsuit like Jane Doe's is much, much scarier than one from an expelled student, especially since Cornell had, in 2024, already issued a communitywide campus crime alert that a female student reported being assaulted by several males and coerced into consuming ketamine and other drugs at a fraternity. I am confident that no reader besides a Title IX lawyer has heard of any of the 21 civil cases launched by aggrieved men that I have been part of. Those cases tend to fly well under the radar, and the settlements are peanuts to a well-endowed school. No celebrities demanded to burn the colleges down; no counselors swore to steer students away. In contrast, this Cornell scandal is the Freddy Krueger nightmare that keeps a university president up at night. So whatever motivated the police and district attorney, I'm skeptical that it was a cynical plot to protect Cornell's reputation. Remember the football players [who went to](#)

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[jail for rape at Vanderbilt](#)? You might not, because they went to jail for 15 years, and that was the end of that as far as public outrage was concerned. I think that Cornell, even if you think that its punishments were way too mild, might have been trying to act with some nuance, at risk (as we are seeing now) to its own brand. The messy truth might be that not everyone involved in a horrible case in some way *should* be expelled. It would be a lot easier to keep students safe if it were as simple as finding the “bad guys” and banning them. But preventing rape—which should be the goal— isn’t that simple.

Some of the things that we’re enraged about (seven rapists punished with essays) aren’t real, and some that are at the root of the problem (substance abuse and fraternities) aren’t getting enough blame. But as we all process this story—and wait for the rest of the facts to be uncovered—I do think we already know one thing: We can’t enforce our way out of the problem of campus rape. I don’t think the harshness of the punishment to these men is going to be the thing that will prevent future cases like this from happening, though of course the facts should be thoroughly investigated and adjudicated. We have to commit ourselves to more realistic ways of mitigating these harms. Universities, you can put me out of the sexual misconduct business if you can create environments that encourage safer behaviors around drugs and alcohol. Yes, you should take a much more serious look at removing frats—in general, not just individual houses that get into trouble—from campus. And you should set your public health researchers to work finding solutions to this as a public health problem.

I keep returning to a certain truth. Every possible interpretation of the terrible night at Chi Phi leads to the same conclusion: Everybody would be better off if it had never happened. Let’s begin that work.

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